

**ENTITY - SELF CERTIFICATION FORM
(FATCA AND CRS)**
實體－自我證明表格
(海外帳戶稅收合規法案與通用報告準則)

PLEASE READ THESE INSTRUCTIONS BEFORE COMPLETING THE FORM.

請於填寫表格前先閱讀以下說明

Regulations based on Foreign Account Tax Compliance Act ("FATCA") and Organisation for Economic Co-operation and Development ("OECD") Common Reporting Standard ("CRS") require financial institutions to collect and report certain required information based on an account holder's tax residence.

根據“海外帳戶稅收合規法案”(“FATCA”)和經濟合作與發展組織(“OECD”)“通用報告準則”(“CRS”)之規定，要求金融機構按照帳戶持有人的稅務居民身份收集及匯報若干所需資料。

Each jurisdiction has its own rules for defining tax residence. In general for entities, tax residence is defined as the jurisdiction where the entity has its place of management. Special circumstances may cause the entity to be resident elsewhere or resident in more than one jurisdiction at the same time (multiple residencies). For more information on tax residence, please consult your tax adviser or the information at the following link for FATCA and CRS at <https://www.irs.gov/> and <http://www.oecd.org/tax/automatic-exchange/crs-implementation-and-assistance/> respectively.

每個司法管轄區均按其自身的規則釐定稅務居民的定義。一般來說，實體的稅務居民身份是其管理地點所在地的司法管轄區。若干特別情況可能導致實體成為其他地方的居民，或同時成為超過一個司法管轄區的居民（多重居民身份）。相關稅務居民身份詳情，請諮詢您的稅務顧問，或瀏覽下列有關 FATCA 或 CRS 的網頁資料：<https://www.irs.gov/> 和 <http://www.oecd.org/tax/automatic-exchange/crs-implementation-and-assistance/>

If the tax residence of the account holder is located outside of the country in which this account is maintained, we may be legally obliged to pass on the information in this form and other financial information with respect to your financial accounts to the tax authorities in the country where the financial institution is located and/or US Internal Revenue Service.

如果帳戶持有人的稅務居民身份位於本帳戶維持所在國之外，本行負有法律責任將本自我證明表格內的資料及與金融帳戶有關的其他金融資料，轉交予金融機構當地稅務機關及/或美國國家稅務局。

This form will generally remain valid unless there is a change in circumstances relating to the account holder's tax residence, (e.g. a change in the ownership structure of the entity by adding controlling person) or other mandatory fields included in this form. **You must notify us within 30 days** if there is a change in circumstance that makes any of the information provided in this form incorrect or incomplete and provide an updated self-certification form.

一般而言，本自我證明表格屬將持續有效，直至帳戶持有人的稅務居民身份發生變化為止（例如，實體通過新增控權人而使其所有權結構發生變化，或本表格內其他必須填寫的內容）。若具有任何導致本自我證明表格所提供的資料不實或不完整的變動，請於 30 日內通知本行，並提供最新的自我證明表格。

This form is intended to request information only where such request is not prohibited by applicable local law or regulations.

本自我證明表格僅作為要求提供資料之用，而相關要求不受當地適用法律或法規禁止。

Please complete this form where you need to self-certify on behalf of an entity account holder.

若您是代表實體帳戶持有人出具自我聲明，請填寫本自我證明表格。

If you are an individual account holder or sole proprietor, please do not complete this form. Instead, please complete the "Individual/Controlling Person - Self Certification Form (FATCA and CRS)".

若您為個人帳戶持有人或獨資經營商，請勿填寫本自我證明表格。請改填「個人/控權人-自我證明表格（海外帳戶稅收合規法案與通用報告準則）」。

Where the account holder is a passive non-financial foreign entity ("NFFE") under FATCA, or passive non-financial entity ("NFE") / an investment entity located in a non-participating jurisdiction managed by another financial institution under CRS:

若帳戶持有人為 FATCA 項下的被動非金融外國實體或 CRS 項下位於非參與稅務管轄區並由另一財務機構管理的投資實體/不屬主動非財務實體的非財務實體：

Please provide information on the natural person(s) who exercise control over the account holder (such individuals referred to as "Controlling Person(s)") by completing an "Individual/Controlling Person - Self Certification Form (FATCA and CRS)" for each Controlling Person. This information should be provided in respect of any account holder which is a passive NFFE under FATCA, or passive NFE / investment entities located in a non-participating jurisdiction and managed by another financial institution under CRS.

請提供對帳戶持有人行使控制權的自然人（即“控權人”）的資料，並請每名控權人分別填寫一份「個人/控權人-自我證明表格（海外帳戶稅收合規法案與通用報告準則）」。若帳戶持有人為 FATCA 項下的被動非金融外國實體或 CRS 項下位於非參與稅務管轄區並由另一財務機構管理的投資實體/不屬主動非財務實體的非財務實體，則必須提供該信息。

If you are completing the form on the account holder's behalf:

若您是代表帳戶持有人填寫本自我證明表格：

You should indicate the capacity in which you have signed in Section 7. For example, you may be completing the form under a signatory authority or power of attorney.

請於第 7 部說明您的代表身分。例如，您可能是有權簽字人或依據授權書填寫本自我證明表格。

As a reporting financial institution under FATCA and CRS, we are not allowed to give any tax or legal advice.

作為一家於 FATCA 及 CRS 法規下的申報金融機構，本行不得提供任何稅務或法律意見。

If you have any questions about this form, these instructions, or defining your tax residency status, please speak to your tax adviser or domestic tax authority.

若您對本自我證明表格之內容與說明或對您的稅務居民身份有任何疑問，請諮詢您的稅務顧問或當地稅務機關。

WARNING:

It is an offence under section 80(2E) of the Inland Revenue Ordinance, Cap. 112 Laws of Hong Kong, if any person, in making a self-certification, makes a statement that is misleading, false or incorrect in a material particular AND knows, or is reckless as to whether, the statement is misleading, false or incorrect in a material particular. **A person who commits the offence is liable on conviction to a fine at level 3 (i.e. HK\$10,000).**

警告：

根據香港法例第 112 章《稅務條例》第 80(2E)條，如任何人在作出自我證明時，在明知一項陳述在要項上屬具誤導性、虛假或不正確，或罔顧一項陳述是否在要項上屬具誤導性、虛假或不正確下，作出該項陳述，即屬犯罪。一經定罪，可處第 3 級（即\$10,000）罰款。

THE CHINESE TRANSLATION IS FOR YOUR REFERENCE ONLY AND IN CASE OF DISCREPANCIES BETWEEN THE ENGLISH VERSION AND ITS CHINESE TRANSLATION, THE ENGLISH VERSION SHALL APPLY AND PREVAIL.

中文翻譯謹供您參考，若英文版本與其中文翻譯有任何不一致之處，概以英文版本為準。

Section 1 Account Holder Identification**第 1 部 實體帳戶持有人的身分識別資料****Account Holder Details** 帳戶持有人詳細資料

[Name – the “Entity”] 實體名稱

[Country of incorporation or organisation] 註冊地

[Registration / Incorporation Document (e.g. Business Registration Certificate, Certificate of Incorporation, Others)] 登記/註冊文件 (例如: 商業登記證、公司註冊證、其他)

[Document Number] 文件號碼

Registered/Permanent Address 註冊/永久地址:

[Room/Flat/Block/Name of Building/Estate (if applicable)] 室/單位/座/大樓/屋苑名稱 (如適用)

[Street Number/Street Name] 街道號碼及名稱

[City, Town] 城市, 鎮

[State or Province] 州或省

[Postal/ZIP Code] 郵政編碼/郵遞區號碼

[Country] 國家

Business Address (if different from above) 經營地址 (如經營地址與現時註冊/永久地址不同, 填寫本欄):

[Room/Flat/Block/Name of Building/Estate (if applicable)] 室/單位/座/大廈/屋苑名稱 (如適用)

[Street Number/Street Name] 街道號碼及名稱

[City, Town] 城市、鎮

[State or Province] 州或省

[Postal/ZIP Code] 郵政編碼/郵遞區號碼

[Country] 國家

Mailing Address (if different from above) 通訊地址 (如通訊地址與現時經營地址不同, 填寫本欄):

[Room/Flat/Block/Name of Building/Estate (if applicable)] 室/單位/座/大廈/屋苑名稱 (如適用)

[Street Number/Street Name] 街道號碼及名稱

[City, Town] 城市、鎮

[State or Province] 州或省

[Postal/ZIP Code] 郵政編碼/郵遞區號碼

[Country] 國家

Section 2 Certification of Account Status
第 2 部 帳戶身份聲明

I/We, on behalf of the entity, certify that the entity is:

本人(等)代表本公司/機構作出以下聲明:

- a) An entity taxable as a corporation, or a partnership, created or organized in or under the laws of the United States of America ("U.S.") or any state or political subdivision thereof or therein, including the District of Columbia or any other states of the U.S.
 本公司/機構乃屬於及在美國法律下所成立或組成並須課稅的法人團體或合夥團體或其任何一州或其政府分支機構(包括哥倫比亞特區或美國其他州在內)。 ☐ Yes 是 ☐ No 否
- b) An estate the income of which is subject to U.S. federal income tax regardless of the source thereof.
 本公司/機構之遺產收入均須繳納美國聯邦所得稅，不論來源何在。 ☐ Yes 是 ☐ No 否
- c) A trust with respect to which a court within the U.S. is able to exercise primary supervision over its administration and one or more U.S. persons have the authority to control all of its substantial decisions, or certain electing trusts that were in existence on 20 August 1996 and were treated as domestic trusts on 19 August 1996.
 本公司/機構是屬於美國境內法院可監理其行政事務且有一人以上之美國人士擁有控制所有主要決定權限之信託，或於 1996 年 8 月 20 日已存在且於 1996 年 8 月 19 日被視為當地信託之選擇信託。 ☐ Yes 是 ☐ No 否

If you have indicated "Yes" to any of the above questions, please go to Section 3. Otherwise, please proceed to Section 4.

若在上述任何問題中選擇「是」，請完成第 3 部分，否則，請完成第 4 部分。

Section 3 U.S. Account Identification
第 3 部 美國帳戶識別

Please provide your U.S. Taxpayer Identification Number (TIN). It is your Employer Identification Number (EIN) for an entity.

請提供美國稅務編號，公司/機構的美國稅務編號為僱主識別編號。

Employer Identification Number 僱主識別編號									
		-							

I/We, on behalf of the entity, certify that:

本人(等)代表本公司/機構作出以下聲明:

The entity is a "Non-Specified U.S. Person"

本公司/機構為「非特定美國人士」

☐ Yes 是 ☐ No 否

- If "Yes", please provide a FATCA Reporting Exemption Code.

若選擇「是」，請提供 FATCA 申報豁免代號。

完成第 3 部分後，請繼續完成第 4 部分。Please proceed to Section 4 after you have completed Section 3.

Section 4 Jurisdiction of Residence and Taxpayer Identification Number or its Functional Equivalent ("TIN")

第 4 部 居留司法管轄區及稅務編號或具有等同功能的識別編號（以下簡稱「稅務編號」）

CRS Declaration of Tax Residence

通用報告準則稅務居民身份證明

Please indicate **ALL** (not restricted to five) the account holder's jurisdiction of tax residence and associated Tax Identification Numbers (TINs) for each tax residence. If the Account Holder is a resident for tax purposes in more than FIVE countries, please use a separate sheet.

請註明帳戶持有人**所有**（不限於 5 個）的稅務管轄區及相應的稅務編號。如帳戶持有人擁有超過五個國家的稅務身份，請另用一張頁面填寫相關資料。

If the account holder is a tax resident of Hong Kong, the TIN is the Hong Kong Business Registration Number.
如帳戶持有人是香港稅務居民，稅務編號是其香港商業登記號碼。

NOTE: If the account holder is not tax resident in any jurisdiction (e.g., because it is fiscally transparent), please provide the place of effective management or country in which its principal office is located.

若帳戶持有人並非任何稅務管轄區的稅務居民（例如：它是財政透明實體），請填寫其有效管理機構所在地或其主要辦事處所在國。

If a TIN is unavailable please provide reason **A, B or C** where appropriate:

如沒有提供稅務編號，請按情況提供合適的理由 **A、B 或 C**：

- **Reason A:** The country where the Account Holder is resident for tax purposes does not issue TINs to its residents
理由 A: 帳戶持有人的居留國家並沒有向其居民發出稅務編號。
- **Reason B:** The Account Holder is unable to obtain a TIN (please explain why Account Holder is unable to obtain a TIN in the below table if you have selected this reason)
理由 B: 帳戶持有人不能取得稅務編號。（如選取這一理由，請解釋帳戶持有人不能取得稅務編號的原因。）
- **Reason C:** TIN is not required (note: only select this reason if the authorities of the country of residence for tax purposes entered below do not require the TIN to be disclosed)
理由 C: 帳戶持有人毋須提供稅務編號。（注：稅務居留國家的主管機關不需要帳戶持有人披露稅務編號。）

Country/Jurisdiction of Tax Residence 國家/稅務管轄區	TIN 稅務編號	If no TIN is available, enter Reason A, B or C 如沒有提供稅務編號，請填寫理由 A、B 或 C	If Reason B is selected above, explain why the Account Holder is unable to obtain a TIN in the corresponding row below 如選擇理由 B，請在下方相應一行說明為何帳戶持有人無法獲取稅務編號的理由
1.			
2.			
3.			
4.			
5.			

If the account holder is not a tax resident in the Jurisdiction of Incorporation or Organisation or Registered/Permanent Address or Business Address or Contact Address, please select one of the following reasons as applicable.

如果帳戶持有人不是成立法人或組織、註冊/永久地址或經營地址或通訊位址所在司法管轄區的稅務居民，請根據情況選擇以下一個原因。

The account holder is not a tax resident of the jurisdiction where the entity was incorporated or the jurisdiction(s) of Registered/Permanent Address (i.e.: _____) because (Please select one of the following reasons as applicable):

帳戶持有人並不是屬於其成立地區、註冊/永久地址或通訊位址所在地區 (即: _____) 的稅務居民，因為 (請根據情況選擇以下一個原因)：

☐ 1. Under the relevant tax laws of the jurisdiction where the account holder is incorporated, the tax residence of the account holder is determined by reference to its place of effective management, and that the jurisdiction where the effective management of the account holder is situated differs from the jurisdiction in which it is incorporated; or 根據帳戶持有人的成立地區相關稅法，帳戶持有人的稅務居民身份是依據其實際管理所在的地區確定，而帳戶持有人其實際管理所在的地區與其成立的地區並不相同; 或

☐ 2. The aforementioned reasonable explanation is NOT applicable to the account holder and the account holder therefore provide the following reasonable explanation to support the entity's jurisdiction of tax residence: 上述合理解釋不適用於帳戶持有人，因此帳戶持有人提供下列合理解釋以支持帳戶持有人的稅務居民身份：

Based on the above certification, please provide any additional information, if considered appropriate:

基於上述聲明，請提供任何其他相關解釋 (如適用)：

Section 5 FATCA Classification
第 5 部 FATCA 分類

If the entity is a U.S Person under Section 2, please omit this section and proceed to Section 6 (CRS Classification).

若貴公司/機構是於第 2 部份的美國機構或實體，請忽略此部分並填寫第 6 部（CRS 分類）。

A. Foreign Financial Institution (“FFI”)
FATCA 法規下「外國金融機構」

If the entity is a Foreign Financial Institution (“FFI”) or any one of the following classifications as defined under the relevant FATCA rules, please tick one of the following boxes below.

若貴公司/機構屬於 FATCA 法規下「外國金融機構」的定義或以下其中一個分類，請在下列適當空格內加上「✓」號，並填上有關資料。

FATCA classification FATCA 分類	Please provide the Global Intermediary Identification Number (“GIIN”) or other information where applicable. 請提供全球中介機構識別號碼(“GIIN”)或在適用處提供相關資料。
☐ Hong Kong Financial Institution 香港金融機構	
☐ Reporting Financial Institution in a Model 1 Inter-Governmental Agreement (“IGA”) Jurisdiction 跨政府協議版本一有報告義務的金融機構	
☐ Reporting Financial Institution in a Model 2 IGA Jurisdiction 跨政府協議版本二有報告義務的金融機構	
☐ Participating FFI in a Non-IGA Jurisdiction 非跨政府協議下參與合規的外國金融機構	
☐ Sponsored FFI 受保薦的外國金融機構	Please provide 1) the GIIN of the sponsored entity; 請提供 1) 受保薦的外國金融機構的 GIIN; and 2) the name of the sponsoring entity. 及 2) 保薦機構的名稱
☐ Registered Deemed Compliant FFI (Except Sponsored FFI) 註冊視同合規的外國金融機構(受保薦的外國金融機構除外)	
☐ Certified Deemed Compliant FFI 認證視同合規的外國金融機構	Please provide Form W-8BEN-E. W-8BEN-E 表格
☐ Exempt Beneficial Owner (“EBO”) – Please specify the type of EBO below 豁免實益擁有人 - 請註明以下其中一個類別 ☐ HKSAR governmental entity (including the Government of the HKSAR and certain entities wholly owned by the Government of the HKSAR) 香港特別行政區政府機構（包括香港特別行政區政府及其全資擁有的機構） ☐ Monetary Authority of Hong Kong 香港金融管理局 ☐ Funds that qualify as EBO in Annex II of the IGA signed between the Government of the HKSAR and the U.S. Government 符合香港特別行政區政府與美國政府簽訂的跨政府協議附錄 II 中「豁免實益擁有人」條件的基金 ☐ International organization as defined in Annex II of the IGA signed between	Not applicable 不適用

the Government of the HKSAR and the U.S. Government 符合香港特別行政區政府與美國政府簽訂的跨政府協議附錄 II 中的國際組織 ☐ Others (Please provide Form W-8BEN-E) 其他類別 (請提供W-8BEN-E表格)	
☐ 不參與合規的外國金融機構 Non-Participating FFI	Not applicable 不適用

If you fall into a FATCA classification which is not being mentioned above, please fill in U.S. Internal Revenue Service ("IRS") Form W-8.

若貴公司/機構的 FATCA 分類並不屬於上述選項，請另行填寫美國國家稅務局(「美國國稅局」) W-8 表格。

B. Non-financial institution

非金融機構

If you are NOT a FFI as defined under the relevant FATCA rules, please tick one of the following boxes below and fill in the relevant information.

若貴公司/機構並非屬於相關 FATCA 法規下的「外國金融機構」，請在下列適當空格內加上「✓」號，並填上有關資料。

FATCA classification for Non-financial institution 非金融機構的 FATCA 分類	Please provide the Global Intermediary Identification Number ("GIIN") or other information where applicable. 請提供全球中介機構識別號碼("GIIN")或在適用處提供相關資料。
☐ Active Non-Financial Foreign Entity ("NFFE") 持有實業的非外國金融機構	Not applicable 不適用
☐ Passive NFFE <u>without</u> Controlling U.S. Person(s) 不涉及美國操控人的被動非外國金融機構	Not applicable 不適用
☐ Passive NFFE <u>with</u> Controlling U.S. Person(s) 涉及美國操控人的被動非外國金融機構 Please complete Individual/Controlling Person - Self Certification Form (FATCA and CRS) 請填寫「個人/控權人-自我證明表格（海外帳戶稅收合規法案與通用報告準則）」	Not applicable 不適用
☐ Direct Reporting NFFE 直接申報的非外國金融機構	
☐ Sponsored Direct Reporting NFFE 受保薦的直接申報的非外國金融機構	Please provide 1) the GIIN of the sponsored Direct Reporting NFFE; 1)受保薦的直接申報的非外國金融機構的GIIN; and 2) the name of the sponsoring entity. 請提供 及2) 保薦機構的名稱

If you fall into a FATCA classification which is not being mentioned above, please fill in U.S. Internal Revenue Service ("IRS") Form W-8.

若貴公司/機構的 FATCA 分類並不屬於上述選項，請另行填寫美國國家稅務局(「美國國稅局」) W-8 表格。

Section 6 CRS Classification
第 6 部 CRS 分類

Please tick one of the below categories as appropriate:

在下列適當的分類前標上「✓」號：

Financial Institution 財務機構	☐ Custodial Institution, Depository Institution or Specified Insurance Company 託管機構、存款機構或指明保險公司 ☐ Investment Entity, except an Investment Entity that is managed by another Financial Institution (e.g. with discretion to manage the Entity's assets) and located in a Non-Participating Jurisdiction 投資實體，但不包括由另一財務機構管理（例如：擁有酌情權管理投資實體的資產）並位於非參與稅務管轄區的投資實體
Active NFE 主動非財務實體	☐ NFE the stock of which is regularly traded on _____, which is an Established Securities Market 該非財務實體的股票經常在_____（一個具規模證券市場）進行買賣 ☐ Related Entity of _____, the stock of which is regularly traded on _____, which is an Established Securities Market _____的有關連實體，該有關連實體的股票經常在_____（一個具規模證券市場）進行買賣 ☐ NFE is a governmental Entity, an international organisation, a central bank, or an Entity wholly owned by one or more of the foregoing entities 政府實體、國際組織、中央銀行或由前述的實體全權擁有的其他實體 ☐ Active NFE other than the above (Please specify _____) 除上述以外的主動非財務實體（請說明_____）
Passive NFE 被動非財務實體	☐ Investment Entity that is managed by another Financial Institution and located in a Non-Participating Jurisdiction 位於非參與稅務管轄區並由另一財務機構管理的投資實體 Please complete Individual/Controlling Person - Self Certification Form (FATCA and CRS) 請填寫「個人/控權人-自我證明表格（海外帳戶稅收合規法案與通用報告準則）」 ☐ NFE that is not an Active NFE 不屬主動非財務實體的非財務實體 Please complete Individual/Controlling Person - Self Certification Form (FATCA and CRS) 請填寫「個人/控權人-自我證明表格（海外帳戶稅收合規法案與通用報告準則）」

Section 7 Declarations and Undertakings
第 7 部 聲明及承諾

I/We declare (on behalf of the Entity) that the information provided in this form is, to the best of my/our knowledge and belief, true, correct and complete.

本人(等)代表本公司/機構聲明就本人(等)所知所信，本表格內所填報的所有資料和聲明均屬真實、準確和完整。

I/We acknowledge, understand and consent that (a) the information contained in this self-certification is collected and may be kept by the financial institution for the purpose of automatic exchange of financial account information, and (b) such information and information regarding the account holder and any reportable account(s) may be reported to the tax authorities of the country/jurisdiction in which this account(s) is/are maintained and/or US Internal Revenue Service, and exchanged with tax authorities of another country/jurisdiction or countries/jurisdictions in which the account holder may be resident for tax purposes pursuant to legal provisions for exchange of financial account information provided under the Inland Revenue Ordinance (Cap.112).

本人(等)知悉、理解及同意金融機構可根據《稅務條例》（第 112 章）有關交換財務戶口資料的法律條文，（a）收集本自我證明表格所載資料並可備存作自動交換金融帳戶資料之用途，及（b）把該等資料和關於帳戶持有人及任何須申報帳戶的資料向該帳戶所在國家/司法管轄區的稅務機關及/或美國國家稅務局申報，從而把資料轉交到戶口持有人可能為稅務居民的國家/司法管轄區的稅務機

關。

I/We certify that I am authorized to sign for the account holder of all the account(s) to which this form relates.
本人(等)證明, 就與本表格所有相關的帳戶, 本人獲帳戶持有人授權簽署本表格。

(The following certification is applicable if the entity has ticked "Yes" in any of the questions in Section 2, i.e. the entity is a U.S. Person)

Under penalty of perjury, I/we certify that:

- (i) The number shown on this form is the correct U.S. Taxpayer Identification Number of the entity, and
- (ii) The entity is not subject to backup withholding because: (a) the entity is exempted from backup withholding, or (b) the entity has not been notified by the U.S. Internal Revenue Service ("IRS") that the entity is subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified the entity that it is no longer subject to backup withholding, and
- (iii) The entity is (i) an entity taxable as a corporation, or a partnership, created or organized in or under the laws of the United States of America ("U.S.") or any state or political subdivision thereof or therein, including the District of Columbia or any other states of the U.S., (ii) an estate the income of which is subject to U.S. federal income tax regardless of the source thereof, or (iii) a trust with respect to which a court within the U.S. is able to exercise primary supervision over its administration and one or more U.S. persons have the authority to control all of its substantial decisions, or certain electing trusts that were in existence on 20 August 1996 and were treated as domestic trusts on 19 August 1996; and
- (iv) The FATCA code(s) entered on this form (if any) indicating that the entity is exempted from FATCA reporting is correct.

(以下聲明適用於貴公司/機構在第二部的任何問題中選擇「是」的情況, 即貴公司/機構是美國人士)
在願受作假證供的懲處下, 本人(等)聲明:

- (i) 本表格所示的號碼是帳戶持有人正確的美國稅務編號 ; 及
- (ii) 本公司/機構毋須繳納後備預扣稅, 原因是 (a) 本公司/機構獲豁免繳納後備預扣稅, 或 (b) 美國國家稅務局(「美國國稅局」)並未通知本公司/機構, 指因帳戶持有人未能申報所有利息或股息而須繳納後備預扣稅, 或 (c) 美國國稅局已通知本公司/機構不再需要繳納後備預扣稅; 及
- (iii) 本公司/機構 (i) 乃屬於及在美國法律下所成立或組成並須課稅的法人團體或合夥團體或其任何一州或其政府分支機構(包括哥倫比亞特區或美國其他州在內); (ii) 源於遺產及因而獲得任何來源的收入均須繳納美國聯邦所得稅, 不論來源何在; 或 (iii) 是屬於美國境內法院可監理其行政事務且有一人或一人以上之美國人士擁有控制所有主要決定權之信託, 或於 1996 年 8 月 20 日已存在且於 1996 年 8 月 19 日被視為美國信託之選擇信託; 及
- (iv) 本表格中所填寫的表明帳戶持有人豁免 FATCA 申報的 FATCA 代號是正確的。

For a U.S. person, the entity is required to provide the relevant declarations contained in the above paragraph. The U.S. Internal Revenue Service does not require your consent to any provision of this document other than the certifications required to avoid backup withholdings.

如貴公司/機構為美國人士, 帳戶持有人須同意以上有關聲明。美國國稅局並不要求貴公司/機構同意其他與避免預扣稅無關的條文。

(The following certification is applicable only if the entity has ticked "No" in all questions in Section 2, i.e. the entity is not a U.S. Person)

Under penalties of perjury, I/we declare that I have examined the information on this form and to the best of my/our knowledge and belief it is true, correct, and complete. I/We further certify under penalties of perjury that:

- (i) The entity is the beneficial owner of all the income to which this form relates, is using this form to certify its status for chapter 4 purposes (i.e., FATCA purposes), or is a merchant submitting this form for purposes of section 6050W of U.S. Internal Revenue Code (IRC), and
- (ii) The entity is not a U.S. person; and
- (iii) The income to which this form relates is: (a) not effectively connected with the conduct of a trade or business in the U.S., or (b) effectively connected but is not subject to tax under an income tax treaty, or (c) the partner's share of a partnership's effectively connected income, and
- (iv) For broker transactions or barter exchanges, the beneficial owner is an exempt foreign person as defined in the instructions of IRS Form W-8BEN-E.

Furthermore, the entity authorizes this form to be provided to any withholding agent that has control, receipt, or custody of the income of which the entity is the beneficial owner or any withholding agent that can disburse or make payments of the income of which the entity is the beneficial owner.

(以下聲明僅適用於貴公司/機構在第二部分的所有問題中皆選擇「否」的情況，即貴公司/機構不是美國人士)
本人(等)在願受作假證供的懲處下特此聲明，本人(等)已閱讀明白本聲明書中所有之內容及同時聲明就本人(等)所知所信，在本表格中所填報的各項資料均屬真實、正確以及完整。本人(等)在願受作假證供的懲處下進一步聲明以下內容為實：

- (i) 本公司/機構為與本聲明書中所載內容相關之所有收入之受益人，用本表格來證明其 FATCA 身份，或以商人身份為美國國內稅收法 Internal Revenue Code (IRC) Section 6050W 提交本表格；及
- (ii) 本公司/機構為非美國機構；及
- (iii) 與本表格中所載內容相關之收入 (a) 與在美國境內之貿易和商業無實際關聯，或 (b) 即使收入與美國境內之貿易和商業有關，其收入可根據互惠協定而不須繳付任何美國之所得稅，或 (c) 相關之收入為合伙經營之份額，並且
- (iv) 就經紀交易或以貨易貨交易而言，受益人為美國稅務表格 W-8BEN-E 說明中所定義之可豁免之外國人。

此外，本公司/機構授權本聲明書以交付任何可對本公司/機構為受益人之收入擁有控制、收取或託管權力之所得稅扣繳單位，或任何對以本公司/機構為受益人之收入擁有發放或支付權力之所得稅扣繳單位。

I/We undertake to **advise** Shanghai Pudong Development Bank Co., Ltd., Hong Kong Branch and **provide an updated self-certification form within 30 days** of the occurrence of any change in circumstance which causes any of the information contained in this form to be incorrect or incomplete.

本人(等)承諾，如情況有所改變，以致本表格所載的資料不準確或不完整，本人會在情況發生改變後 30 日內，告知並提供一份已更新的自我證明表格予上海浦東發展銀行股份有限公司香港分行。

Subject to applicable local laws, the entity hereby consents for Shanghai Pudong Development Bank Co., Ltd., Hong Kong Branch to disclose, report or share the information of the entity with local and overseas regulators or tax authorities where necessary to establish its tax liability in any jurisdiction.

在不抵觸受限於當地適用的法律的情況下，本公司/機構同意上海浦東發展銀行股份有限公司香港分行可向本地及海外監管機構或稅務機構披露、呈交或提供本公司/機構的資料以確立本公司/機構於任何司法管轄區的稅務責任。

Where required by local or overseas regulators or tax authorities, the entity consents and agrees that Shanghai Pudong Development Bank Co., Ltd., Hong Kong Branch may withhold from the account(s) of the entity such amounts as may be required according to applicable laws, regulations and directives.

因應本地及海外監管機構或稅務機構的要求，本公司/機構同意並准許上海浦東發展銀行股份有限公司香港分行可按適用的法律、法規和指令在本公司/機構戶口中扣留相關所須的款項。

The entity undertakes to fully cooperate with Shanghai Pudong Development Bank Co., Ltd., Hong Kong Branch to ensure it meets its obligations under applicable laws, regulations and directives in connection with our account(s).

本公司/機構承諾會與上海浦東發展銀行股份有限公司香港分行充分合作，以確保上海浦東發展銀行股份有限公司香港分行就處理與本公司/機構戶口相關的事宜會符合適用的法律、法規和指令。

Authorised Signature(s)* 獲授權人士簽署

[Authorised signature #1] 簽署人士一

[Authorised signature #2, if required] 簽署人士二(如需)

[Print name #1] 正楷姓名

[Print name #2] 正楷姓名

[Date (dd/mm/yyyy)] 日期(日/月/年)

[Date (dd/mm/yyyy)] 日期(日/月/年)

Note: If you are not the account holder, please indicate the capacity in which you are signing the form. If signing under a power of attorney please also attach a certified copy of the power of attorney.

注意：若您不是帳戶持有人，請述明您的代表身份。如果您是以授權人身份簽署，請提供該授權書之核證副本。

Capacity in which declaration is made (e.g. director or officer of a company, partner of a partnership, trustee of a trust etc.) *

簽署人之身分（例如：公司的董事或高級人員、合夥的合夥人、信託的受託人等）*

[Authorised signature #1] 簽署人士一

[Authorised signature #2] 簽署人士二

备注：